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Gavin Newsom Signs 'First-in-the-Nation' Law on Ultra-Processed Food

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California Governor Gavin Newsom signed a slate of bills into law this week, including a first-in-the-nation measure phasing out ultra-processed foods from school lunches—an issue that has drawn bipartisan support across the country.

Newsweek has reached out to the governor's press team and the assemblymember who proposed the bill for comment via email on Thursday. Newsweek has also reached out to the Department of Health and Human Services (HHS) for comment via email on Thursday.

Why It Matters

Newsom has previously signed legislation and executive orders related to school meals, including banning six food dyes in California public schools and approving additional funding for school lunches.

While Newsom and the Trump administration have repeatedly clashed on policy, most vocally on immigration, the governor's bill puts into play a central tenet of HHS Secretary Robert F. Kennedy Jr.'s agenda. Kennedy Jr. has been sharply critical of ultra-processed foods, calling them out for being a major contributor to chronic disease.

The U.S. Centers for Disease Control and Prevention (CDC) reports that 8.4 million adolescents between 12 and 17 years old, or 32.7 percent of the youth population, have prediabetes. Over 40 percent of American adults are obese, according to data from the National Health and Nutrition Examination Survey, and around 20 percent of children and teens. Obesity is a health condition that increases the risk of certain conditions, including high blood pressure, type 2 diabetes, coronary heart disease, stroke, and more.

What To Know

On Wednesday, Newsom signed AB 1264, which was put forward by Assemblymember Jesse Gabriel, a Democrat. The law requires California public schools to start phasing out "restricted school foods and ultra-processed foods of concern by no later than July 1, 2029."

"The law is based on a simple, common-sense idea: schools should not serve students products that can harm their health or interfere with their ability to learn," the governor's office said in a press release.

Gabriel said the law is a "historic step toward protecting our children from harmful ultra-processed foods and chemical additives." The law directs the state Public Health Department to determine which foods should be phased out. The bill passed the Legislature in September and received bipartisan support.

The law comes amid a large health push by the Trump administration. As part of his pledge to "Make America Healthy Again" (MAHA), Kennedy Jr. has sought to remove ultra-processed foods and chemical dyes. A May report from the MAHA commission, stated that the consumption of ultra-processed foods "has gone up at an exponential rate as share of the American diet," noting that nearly 70 percent of the average American child's calories now come from ultra-processed foods.

Kennedy Jr., has repeatedly warned of a chronic disease epidemic in the country, and has urged Americans to adopt "diets centered on whole foods."

What People Are Saying

Governor Gavin Newsom said in an October 8 press release: "California has never waited for Washington or anyone else to lead on kids' health — we've been out front for years, removing harmful additives and improving school nutrition. This first-in-the-nation law builds on that work to make sure every California student has access to healthy, delicious meals that help them thrive."

First Partner Jennifer Siebel Newsom also said: "For too many students, the meals they receive at school are the only ones they can count on in a day, which makes the quality of that food all the more important. By removing the most concerning ultra-processed foods, we're helping children stay nourished, focused, and ready to learn. AB 1264 is the first law of its kind in the nation and builds on California's long record of leading with children's health and well-being at the forefront. While Washington debates how to 'make America healthy again,' they need not look any further than California."

Assemblymember Jesse Gabriel said in an October 8 press statement: "While Washington DC is paralyzed by inaction, California is once again leading the nation with a bipartisan, commonsense, science-based approach. Here in the Golden State, Democrats and Republicans are joining forces to ensure that students are receiving healthy, nutritious meals that are made from real foods, not harmful chemical additives. I applaud Governor Newsom for his continued leadership on food safety and I am grateful to the dedicated advocates from around the country who worked tirelessly to help us pass this important new law."

HHS Secretary Robert F. Kennedy, Jr. said in a July press release: "Ultra-processed foods are driving our chronic disease epidemic. We must act boldly to eliminate the root causes of chronic illness and improve the health of our food supply. Defining ultra-processed foods with a clear, uniform standard will empower us even more to Make America Healthy Again."

U.S. Secretary of Agriculture Brooke L. Rollins said in a July press release: "President Trump has made it a priority to improve health outcomes for American families and communities. And this Request for Information is yet another step in seeking commonsense ways to foster improved and more informed consumer choice. A unified, widely understood definition for ultra processed foods is long overdue and I look forward to continued partnership with Secretary Kennedy to Make America Healthy Again. As this process unfolds, I will make certain the great men and women of the agriculture value chain are part of the conversation."

What Happens Next?

Under the new law, California schools are required to start phasing out these ultra-processed foods by 2029 and to have them fully eliminated within 10 years.

HHS and the Department of Agriculture will be issuing new dietary guidelines this fall.

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